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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing
of personal data, as well as the free movement of such data and repealing Directive 95/46/EC,
"General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the
protection of personal data, containing provisions for the adaptation of the national legal system to
Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the
protection of natural persons with regard to the processing of personal data, as well as the free
movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD to Regulation No. 1/2019 concerning internal procedures with external relevance,
aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection
of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8,
2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for
the protection of personal data, doc. web n. 1098801;

REPORTING Prof. Ginevra Cerrina Feroni;

PREAMBLE

1. Introduction.

With a complaint filed pursuant to Article 77 of the Regulation, Drs. XX, XX, and XX, professionals
registered with the Order of Veterinary Doctors of the Province of Latina (hereinafter, "OMV of Latina"),
have complained, through their lawyer, of an alleged violation of the regulations on the protection of
personal data.

In particular, it was reported that certain resolutions adopted by another provincial professional order of
veterinary doctors on XX, which, pursuant to Article 4 of Decree-Law No. 44 of April 1, 2021, ordered
the suspension from professional activity of certain professionals, including the complainants, for
violation of vaccination obligations, were made available to the OMV of Latina and subsequently
transmitted by the latter to all its members.

In the course of the investigation related to the complaint, the Authority also identified certain possible
violations concerning the role of the Data Protection Officer ("DPO"), initiating ex officio investigations
in this regard against the OMV of Latina.

2. The investigative activity.

In response to a request for information sent by the Authority on XX pursuant to Article 157 of the
Code (prot. n. XX), the OMV of Latina, with a note dated XX (prot. n. XX), stated, in particular, that:
the OMV of Latina "is a small professional order with only 288 members [...]; the work [of the members
of the Board of Directors and the Board of Auditors] is carried out purely out of a spirit of service, trying
not to assign tasks to external personnel, acquiring them in-house, to limit the costs that would burden

the members";

"on XX, the OMV of Latina received, sent via PEC [from another provincial professional order of veterinary doctors], the deliberation acts prot. XX — XX — XX — XX — XX — XX — XX — XX of XX relating to the suspension ex lege of Veterinary Doctors, registered with the same Order, for non-compliance with the vaccination obligation referred to in Article 4 of DL 01/04/2021 n. 44 [...]. Presumably, these acts were forwarded [to the] Order in compliance with D.P.R. 221/1950, whose Article 49 states: 'The suspension from professional practice and expulsion measures, when they have become definitive, are communicated to all Orders or Colleges of the category to which the suspended or expelled healthcare professional belongs and to the authorities and entities to which the Register must be sent pursuant to Article 2'";

"indeed, on XX, the OMV of Latina sent the resolutions [of another provincial professional order of veterinary doctors] to the email addresses of all members of the Register";

"[...] it was a mere material error made only on that occasion";

"[...] at the time of the events subject to the complaint (XX), there were not a few interpretative doubts regarding the methods deemed most suitable to ensure the publicity of the suspension measures from healthcare professions, resulting from non-vaccination";

"the act of designation of the [...] DPO [who was in office at the time of the investigative checks] is dated XX when the relevant resolution was adopted within the Board of Directors of the OMV of Latina [...]. [The] DPO Dr. XX is a member of the Board of Directors and was therefore present at the resolution through which he was appointed. The undersigned replaced the previous DPO Dr. XX elected on XX";

"on XX, the DPO Dr. XX proceeded to forward to the [Guarantor], through the procedure Veterinarian may inadvertently collaborates with a suspended colleague, leading to potential violations of the aforementioned ethical standards";

"in light of the above, it is essential that the OMV ensures that all members are informed of any suspension measures to uphold the integrity of the profession and prevent any inadvertent breaches of the Code of Ethics";

"therefore, the OMV must take appropriate actions to communicate any suspension decisions effectively and promptly to all members, ensuring compliance with the ethical obligations outlined in the Code";

"the failure to communicate such decisions not only undermines the regulatory framework but also poses risks to public trust in the veterinary profession";

"in conclusion, the OMV of Latina acknowledges the importance of adhering to both regulatory and ethical standards and commits to enhancing its communication strategies to prevent any future occurrences of non-compliance."

Veterinarian, due to the lack of knowledge of a suspension order, may incur disciplinary and professional liability [...] ignoring the suspension orders, he would himself have violated the ethical standards. Certainly, the communication of the suspension orders prevents such eventuality"; "from another perspective, the sending of the orders in question, from the viewpoint of the OMV of Latina, could serve a function of guarantee and protection for its members, in compliance with the functions of the Order" pursuant to the relevant regulations; "among the duties of professional Orders, one can also count the protection of professional practice in a broad sense and the related principles, including those of information, towards its members and third parties, given also the implicit reference of the norm to the Code of Ethics"; "the nature of the violation is certainly negligent, as the Entity has always indicated the material error in the full spirit of collaboration with the Authority"; "in any case, having noted the [communication from the Authority of XX cited ...], with deliberation act no. XX of XX of the Council [...] Dr. XX has been appointed DPO [...], in replacement of Dr. XX. The data was communicated on XX to the Authority [...]. It is noted that Dr. XX is not part of the Executive Council of the Order"; "with reference to the failure to communicate the contact details of Dr. XX, the OMV of Latina communicated, via certified email on XX [...] the appointment of the (former) DPO attaching the relevant resolution"; "the work [of maintenance of the institutional website] involved [...]activities that did

not allow] the publication of the contact details of the DPO”; currently, “the site is fully operational [...] and indicates the contact details of the [DPO]”;

“to mitigate the consequences of the violation abstractly attributable to the conflict of interest concerning the DPO, Dr. XX has resigned and in replacement, Dr. XX has been appointed”; “the emergency regulations during the Covid period were not at all clear and were susceptible to different interpretations, especially in the field of privacy.” During the hearing, requested pursuant to art. 166, paragraph 6, of the Code and held on XX (see minutes prot. no. XX of XX), the OMV of Latina declared, in particular, that: “when the events subject to the complaint occurred, the Council of the Order had just been established and had to face the delicate pandemic context, finding itself making complex decisions, quickly, in a new and not easily interpretable legal framework”; “as soon as the Order became aware of the observations made by the Authority regarding the position of the [DPO], it promptly activated to designate a new [DPO]”; “all suspended doctors have been reinstated to date and, therefore, it is believed that the interested parties have not suffered any damage”; “in any case, if there was a violation, it certainly has a negligent nature, as the Order acted in absolute good faith, with the aim of pursuing the public interest and that of its members.”

3. Outcome of the investigative activity.

3.1. The regulations on the processing of personal data

Public entities may process personal data, including data related to special categories (cf. art. 9, par. 1, of the Regulation), if the processing is necessary “to comply with a legal obligation to which the data controller is subject” or “for the performance of a task carried out in the public interest or in the exercise of public powers vested in the data controller” (arts. 6, par. 1, lett. c) and e), and 9, par. 2, lett. g) of the Regulation, as well as 2-ter and 2-sexies of the Code).

European regulations provide that “Member States may maintain or introduce more specific provisions to adapt the application of the rules of [...] the regulation regarding processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures to ensure lawful and fair processing [...]” (art. 6, par. 2, of the Regulation). In this regard, it is highlighted that the operation of communicating personal data to third parties by public entities is permitted only under the conditions provided for by art. 2-ter of the Code.

The data controller is, in any case, required to comply with the principles regarding data protection, among which are “lawfulness, fairness, and transparency” as well as “minimization,” according to which personal data must be “processed lawfully, fairly, and transparently in relation to the data subject” and “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed” (art. 5, par. 1, lett. a) and c), of the Regulation).

3.2. The communication of the personal data of suspended professionals to members of the OMV of Latina

Regarding the processing of personal data related to the anti-SARS-CoV-2 vaccination, the legislator - with art. 4 of the law decree of April 1, 2021, no. 44, converted into law on May 28, 2021, no. 76, in the text applicable at the time of the events subject to the complaint - had established that vaccination constituted “an essential requirement for the exercise of the profession and for the performance of work activities” for those practicing health professions and healthcare operators expressly indicated by law.

Art. 4, paragraph 6, provided that “after the deadlines...

for the certification of compliance with the vaccination obligation [...], the competent local health authority verifies the non-compliance with the vaccination obligation and, after acquiring any further information from the competent authorities, gives immediate written notice to the interested party, the employer, and the relevant professional Order. The adoption of the verification act by the local health authority results in the suspension of the right to perform services or tasks that involve interpersonal contacts or pose, in any other form, the risk of spreading SARS-CoV-2 contagion.” The subsequent paragraph 7 specified that “the suspension referred to in paragraph 6 is immediately communicated to the interested party by the relevant professional Order.”

In this context, following discussions between the Authority, the national Federations of health professions Orders, and the Ministry of Health, the latter had sent a note of interpretation to the

national Federations (prot. n. XX), concerning “Art. 4 of the decree-law of April 1, 2021, n. 44 converted with modifications by law of May 28, 2021, n. 76. Obligations by the Orders,” reiterating and integrating the previous indications provided in the note of XX (prot. n. XX).

In particular, in the aforementioned interpretative note of XX1, it was specified that the above-mentioned art. 4 was “in the intention of the legislator, an essential requirement for the same to be considered suitable to carry out their professional activity, as well as a legitimizing condition for the exercise of the same, in any legal form.” This resulted in the consequence that “the activity of the Order provided for by [...] paragraph 7, consists of a mere informational burden, that is, the communication to the interested party [...] without any merit evaluation, of the suspension resulting ex lege from the verification act of the ASL, recording the related annotation in the register, in compliance with the rules on the protection of personal data.” Therefore, from the non-compliance with this professional requirement “there can only follow for the healthcare professional [...] the ex lege suspension from the exercise of the healthcare professional activity outright.”

The above-mentioned regulatory framework was subsequently reformed by the legislator (see decree-law of November 26, 2021, n. 172), introducing a different procedure for verifying the vaccination requirement by the professional Orders through their respective national Federations.

It should be noted that, following the issuance of decree-law of October 31, 2022, n. 162 and starting from November 1, 2022, the vaccination requirement is no longer provided for those exercising health professions and operators of health interest, the following is highlighted.

During the validity of the above-mentioned regulatory framework, the various parties involved (employers, regions, health authorities, professional orders), in carrying out the treatments in question (which find their legal basis in the aforementioned regulatory provision) were required to ensure compliance with the principles of data protection (art. 5 of the Regulation), as well as to process the data through authorized personnel who were duly trained regarding access to the data (arts. 4, n. 10, 29, 32, par. 4, of the Regulation), also taking into account the particular sensitivity of the same (art. 9, par. 2 and 4, as well as art. 4, n. 15, and cons. 35 of the Regulation).

In the system of the Regulation and the Code, these sector-specific rules constituted the legal basis for the processing operations necessary for verifying the existence (or not) of the professional requirement, uniformly delineating at the national level the scope of processing permitted to each of the institutional parties involved in the verification process (see the numerous provisions of the Guarantor during the emergency period and, in particular, the opinions issued on the implementing provisions of the aforementioned framework, specifically regarding that issued with provision of December 13, 2021, n. 430, web doc n. 9727220, see also the provisions referred to therein). As traditionally stated by the Guarantor, particularly in a work context as delicate as that of passenger air transport, the treatments carried out for the purpose of verifying the requirements for access to and performance of certain professions provided for by specific legal provisions must be conducted in strict compliance with the limits and conditions set forth by that reference framework (see provision of April 27, 2016, n. 194, web doc n. 5149198).

Given this, it should be noted that the OMV of Latina had received, from a different provincial professional Order of veterinarians, certain resolutions concerning the suspension of veterinary professionals, ordered pursuant to the aforementioned art. 4 of decree-law of April 1, 2021, n. 44, within a regulatory framework characterized by particular application uncertainty (or pursuant to art. 49, paragraph 2, of D.P.R. n. 221/50, regarding which the Ministry of Health, subsequent to the events subject to complaint, clarified, with note prot. n. XX of XX, that, since the acts of verification of non-compliance with the vaccination obligation do not have a disciplinary nature, communications should not be sent to the entities referred to in the aforementioned art. 49); the autonomous procedure initiated against that Order was therefore concluded by the Authority in accordance with similar cases (see, with regard to the aforementioned profiles, provisions of May 17, 2023, n. 194, web doc n. 9910245 and November 24, 2022, n. 385, web doc n. 9839018).

That clarified, it is established that, upon receiving the resolutions in question, containing the data

****Personal Data of the Claimants and Other Professionals****

The OMV of Latina, with a note dated XX, has nevertheless forwarded to all its members via email a complete copy of the aforementioned resolutions, thereby communicating the personal data in question. As stated by the OMV of Latina, the communication of the personal data in question would have been made by mere error and, therefore, in the absence of a legal basis. This is because the regulatory framework in the sector, as reconstructed above, did not foresee the communication of suspension measures to the members of the Orders or colleges of the category to which the suspended healthcare professionals belong.

Although the OMV of Latina claimed to have made the communication in question due to a mere material error, in its defense memoranda, the Order itself stated that such communication, even if made by mistake, could in any case be considered lawful, as it could still be traced back to the generic institutional functions of the OMV of Latina or needs for transparency.

In this regard, it should be noted that, within the context of the emergency regulations adopted to address the SARS-CoV-2 epidemic, it was the legislator itself, by adopting the aforementioned Article 4 of Decree Law No. 44 of April 1, 2021, that defined, balancing the various interests at stake with uniform provisions for the entire national territory, the communication flows between the various public entities involved, deemed necessary for the verification of the possession of the vaccination requirement and the consequent suspension from the exercise of certain professions, also due to the implications of such a condition for the protection of public health.

In this regulatory framework, which, as mentioned, constituted the legal basis for the aforementioned treatments, the communication of the personal data of the interested parties, carried out by the OMV of Latina, cannot be considered “necessary” for the fulfillment of a task carried out in the public interest or for the exercise of public powers (Article 6, paragraph 1, letter e) of the Regulation). Nor can generic purposes of transparency towards potential clients and colleagues of the suspended professionals be invoked, given that those who wish to verify the current status of a professional's registration can freely consult the professional register published online pursuant to Article 61, paragraph 2, of the Code.

In light of the above considerations, the OMV of Latina communicated to third parties, private subjects, namely to hundreds of recipients coinciding with all the professionals then registered with the same provincial Order, personal data of the claimants in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code (in the text prior to the amendments made by Decree Law No. 139 of October 8, 2021).

It is emphasized, in any case, that the matter in question did not involve the communication of “health data” (Article 4, paragraph 1, no. 15 of the Regulation), since, although this definition also includes the provision of health services (see, although regarding the different context of mandatory vaccinations for students, the “Note from the President of the Guarantor, Antonello Soro, on vaccination obligations” of October 20, 2018, web doc no. 7037400), in the case at hand, considering the specific regulatory framework mentioned above, the lack of vaccination against SARS-CoV-2 could not be correlated to specific reasons for exemption or deferral, related to morbidity situations, past or present, temporary or permanent of the interested party (cf. provisions of May 17, 2023, no. 194, cited and November 24, 2022, no. 385, cited). Conversely, in fact, if the competent health authority had ascertained the occurrence of the aforementioned health conditions, the suspension of the professionals would not have been ordered, according to what is expressly provided for in Article 4, paragraphs 5 and 6, of the aforementioned Decree Law No. 44/2021 (in the text in force at the time, pursuant to which “upon receiving the report referred to in paragraph 4, the local health authority invites the interested party to submit, within five days from the receipt of the invitation, the documentation proving the vaccination or the omission or deferral thereof [...], or the submission of the vaccination request or the non-existence of the prerequisites for the vaccination obligation [...]. After the deadlines for certifying compliance with the vaccination obligation have elapsed [...], the competent local health authority ascertains the non-compliance with the vaccination obligation”).

****3.3. The Data Protection Officer (DPO)****

Regarding the figure of the DPO, the data protection regulations provide that the designation of the same is always required by a “public authority” or a “public body” (Article 37, paragraph 1, letter a) of the Regulation). The DPO “may perform other tasks and functions,” provided that “the data controller or the data processor ensures that such tasks and functions do not give rise to a conflict of interest” (Article 38, paragraph 6, of the Regulation; cf. Recital 97 of the Regulation, where it is stated that DPOs “should be able to carry out their functions and tasks independently”).

With specific reference to the prohibition of conflicts of interest, the “Guidelines on Data Protection Officers” (adopted by the Article 29 Working Party on December 13, 2016, in the version... amended on April 5, 2017) specify that “the absence of conflicts of interest is closely related to the obligations of independence. Even if a DPO can perform other functions, the assignment of such additional tasks and functions is only possible on the condition that they do not give rise to conflicts of interest. This means, in particular, that a DPO cannot hold a role within the organization of the data controller or the data processor that involves defining the purposes or methods of processing personal data. This is an element to be considered on a case-by-case basis, looking at the specific organizational structure of the individual data controller or data processor” (par. 3.5, p. 21). The data controller must publish the contact details of the DPO and communicate them to the supervisory authority (art. 37, par. 7, of the Regulation).

3.3.1. The failure and then untimely communication to the Authority of the contact details of the DPO as well as the failure to publish the same data

In this case, the OMV of Latina has designated three different DPOs over time.

At the time of the first designation, the OMV of Latina limited itself to notifying the Guarantor via a communication sent by certified email on XX (prot. n. XX), without, however, simultaneously indicating the contact details of the DPO.

Regarding the second designation, the contact details of the new DPO (Dr. XX), who was in office at the time of the investigative checks, were communicated to the Guarantor on XX and, therefore, well one hundred and six days after the date of his designation (XX), only following the initiation of the investigation related to the complaint by the Authority.

Regarding the obligation of the data controller to publish the contact details of the DPO, it should be noted that, as clarified by the Guarantor in the “Guidance Document on the designation, position, and tasks of the Data Protection Officer (DPO) in the public sector,” cited, “the publication [...] must be carried out on the administration's website, within a section easily recognizable by the user and accessible from the homepage, as well as within the section dedicated to the organizational chart of the entity and its related contacts” (par. 7; but see also the “FAQs on the Data Protection Officer (DPO) in the public sector (in addition to those adopted by the Article 29 Working Party,” FAQ n. 4).

The circumstance that, as stated by the OMV of Latina, the failure to publish the contact details of the DPO on its institutional website was due to maintenance work on that site cannot be considered sufficient to justify the conduct of the Order. This is because the OMV of Latina has not sufficiently demonstrated the reasons why the maintenance work on the site would have prevented the publication of such information, nor has it shown that, even before the start of such work, the contact details of the DPO were still accessible on the site.

Furthermore, the publication of the “name” of the DPO on the “official Facebook page of the OMV of Latina” cannot be considered sufficient. This is not only because the publication of only the name of the DPO, in the absence of the relevant contact details, does not satisfy the requirements of art. 37, par. 7, of the Regulation, but also considering that users of the institutional website of the OMV of Latina do not necessarily visit the “official Facebook page of the OMV of Latina.”

Taking into account the above and noting that, currently, the institutional website of the OMV of Latina indicates the contact details of the DPO, it must be concluded that the OMV of Latina, by failing to timely communicate to the Authority the contact details of the DPO and to publish the same data on its institutional website, acted in violation of art. 37, par. 7, of the Regulation.

3.3.2. The existence of conflicts of interest concerning the DPO

As stated by the OMV of Latina, “the act of designation of the [...] DPO [in office at the time of the

investigative checks] is dated 17/11/21 when the relevant resolution was adopted by the Board of Directors of the OMV of Latina [...]. [The] DPO Dr. XX is a member of the Board of Directors and was therefore present at the resolution through which he was appointed.”

As clarified by the Guarantor, specifically regarding “individuals participating in collegial bodies, even at the highest level,” “it is possible that current regulations include measures that can be considered adequate to prevent risks of conflicts of interest, such as, for example, the provision that members who believe they find themselves in such a situation declare it and, consequently, abstain from both discussion and resolution. For these reasons, it is believed that a member of such a collegial body, when appointed as DPO, does not, by that very fact, find themselves in a situation of conflict of interest, provided that adequate measures to prevent conflicts of interest are present and fully respected” (par. 10.1 of the “Guidance Document on the designation, position, and tasks of the Data Protection Officer (DPO) in the public sector,” attached to provision April 29, 2021, n. 186, doc. web n. 9589104; see also part. 3.5 of the “Guidelines on Data Protection Officers,” mentioned above; regarding the existence of a conflict of interest, albeit in different circumstances, concerning the DPO, see provision n. 318 of September 16, 2021, doc. web n. 9718134).

In this case, the OMV of Latina has not proven that it has adopted adequate measures to prevent the risks of conflicts of interest concerning Dr. XX,

the application of the administrative pecuniary sanction and any accessory sanctions, as provided for in articles 58, paragraph 2, letter i) and 83 of the Regulation; article 166, paragraph 7, of the Code.

The Authority, pursuant to articles 58, paragraph 2, letter i) and 83 of the Regulation as well as article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to article 83, in addition to the [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case,” and, in this context, “the Board [of the Authority] adopts the injunction order, which also provides for the application of the administrative pecuniary sanction and any accessory sanctions.”

In light of the above considerations, it is concluded that the designation of Dr. XX as DPO, a member of the Board of the same Order, without the adoption of measures aimed at preventing the risks of conflicts of interest, occurred in violation of article 38, paragraph 6, of the Regulation.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - the truthfulness of which may be subject to accountability under article 168 of the Code - while deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of this procedure, as none of the cases provided for in article 11 of the Regulation of the Authority no. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by the OMV of Latina is noted, for having communicated to third parties the personal data of the complainants in a manner not compliant with the principle of “lawfulness, fairness, and transparency,” in the absence of a legal basis, having omitted and then communicated the contact details of the DPO to the Authority in a delayed manner and failing to publish the same, as well as for having designated a person in a conflict of interest as DPO, in violation of articles 5, paragraph 1, letter a), 6, 37, paragraph 7, 38, paragraph 6, of the Regulation and 2-ter of the Code (in the text prior to the amendments made by the decree law of October 8, 2021, no. 139).

In this context, the conditions for adopting further corrective measures under article 58, paragraph 2, of the Regulation are not met, considering, in any case, that the conduct has exhausted its effects.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (articles 58, paragraph 2, letter i and 83 of the Regulation; article 166, paragraph 7, of the Code).

The Authority, pursuant to articles 58, paragraph 2, letter i) and 83 of the Regulation as well as article

166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to article 83, in addition to the [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case," and, in this context, "the Board [of the Authority] adopts the injunction order, which also provides for the application of the administrative pecuniary sanction and any accessory sanctions."

****Regarding the application of the accessory administrative sanction of its publication, in whole or in part, on the website of the Authority pursuant to Article 166, paragraph 7, of the Code**** (Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019).

In this case, the OMV of Latina has engaged in two distinct behaviors, which must therefore be considered separately for the purpose of quantifying the administrative sanctions to be applied.

****5.1 The violation referred to in paragraph 3.2 of this provision****

Considering that the violation of the provisions cited in the previous paragraph 3.2, as a result of the communication by the OMV of Latina to its members regarding the suspension from professional activity of the complainants and five other professionals for violating vaccination obligations, occurred as a result of conduct that can be considered unitary, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation.

Considering that, in this case, all the established violations - Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code - are subject to the administrative sanction provided for by Article 83, paragraph 5, of the Regulation, as also recalled by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

The aforementioned administrative pecuniary sanction imposed, based on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that the communication in question involved a limited number of interested parties (cf. Article 83, paragraph 2, letter a), of the Regulation) and occurred due to mere material error (cf. Article 83, paragraph 2, letter b), of the Regulation) and did not concern particular categories of data (Article 83, paragraph 2, letter g), of the Regulation), it is believed that, in this case, the level of severity of the violation committed by the data controller is low (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, it is believed that, for the purpose of quantifying the sanction, the following mitigating circumstances should be taken into account:

- the violation was committed by a professional order, such as the OMV of Latina, of limited size, moreover in a context characterized by significant organizational difficulties as well as further problems and uncertainties related to the emergency period due to the spread of the Covid-19 virus (Article 83, paragraph 2, letter k) of the Regulation);
- the OMV of Latina has offered a good level of cooperation with the Authority during the investigation (Article 83, paragraph 2, letter f), of the Regulation);
- there are no previous relevant violations committed by the OMV of Latina (Article 83, paragraph 2, letter e), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at €2,000 (two thousand) for the violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

****5.2 The violation referred to in paragraphs 3.3.1 and 3.3.2 of this provision****

Considering that the violation of the provisions cited in the previous paragraphs 3.3.1 and 3.3.2 occurred as a result of conduct that can be considered overall unitary, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does

not exceed the amount specified for the most serious violation. Considering that, in this case, all the established violations - Articles 37, paragraph 7, and 38, paragraph 6, of the Regulation - are subject to the administrative sanction provided for by Article 83, paragraph 4, of the Regulation, the total amount of the sanction is to be quantified up to €10,000,000.

The aforementioned administrative pecuniary sanction imposed, based on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

With specific regard to the nature and severity of the violation (Article 83, paragraph 2, letter a), of the Regulation), it must be considered that the occurrence of situations of conflict of interest concerning the DPO, in compromising their independence, may jeopardize the proper fulfillment by the data controller of the obligations arising from the data protection legislation and that the failure to inform about the contact details of the DPO may likewise jeopardize the ability of the interested parties to assert their rights with the data controller and for the Authority to interface effectively with the same.

That said, it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That said, it is believed that, for the purpose of quantifying the sanction, the following mitigating circumstances should be taken into account:

- the OMV of Latina has offered a good level of...

cooperation with the Authority during the investigation, having promptly acted following the initiation of the investigation by the Authority, to remedy the alleged violations (art. 83, par. 2, lett. f), of the Regulation);

the violation was committed by a professional order, such as the OMV of Latina, of limited size (art. 83, par. 2, lett. k) of the Regulation);

there are no previous relevant violations committed by the OMV of Latina (art. 83, par. 2, lett. e), of the Regulation).

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary sanction at €5,000 (five thousand) for the violation of arts. 37, par. 7, and 38, par. 6, of the Regulation, as an administrative monetary sanction considered, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

5.3. The accessory sanction of publication

Considering, in particular, that the personal data of the interested parties have been communicated to all the numerous members of the OMV of Latina, it is deemed that the accessory sanction of publication on the Garante's website of this provision, as provided for by art. 166, comma 7 of the Code and art. 16 of the Garante's Regulation no. 1/2019, should be applied.

It is noted, finally, that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE, THE Garante

declares, pursuant to art. 57, par. 1, lett. f), of the Regulation, the unlawfulness of the processing carried out by the OMV of Latina for violation of arts. 5, par. 1, lett. a), 6, 37, par. 7, 38, par. 6, of the Regulation and 2-ter of the Code (in the text prior to the amendments made by the decree-law of October 8, 2021, no. 139), in the terms set out in the motivation;

ORDERS

the Order of Veterinary Doctors of the Province of Latina, represented by the legal representative pro tempore, with registered office at via dei Peligni, 38 – 04100 Latina (LT), C.F. 80013080595, to pay the total sum of €5,000 (five thousand) as an administrative monetary sanction for the violations indicated in the motivation. It is represented that the offender, pursuant to art. 166, comma 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

COMMANDS

the aforementioned Order of Veterinary Doctors of the Province of Latina, in case of failure to settle the dispute pursuant to art. 166, comma 8, of the Code, to pay the total sum of €5,000 (five thousand)

according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to art. 27 of law no. 689/1981;

DISPOSES

pursuant to art. 166, comma 7, of the Code, the publication of this provision on the Garante's website, considering that the conditions referred to in art. 17 of the Garante's Regulation no. 1/2019 are met. Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, February 22, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Cerrina Feroni

THE SECRETARY GENERAL

Mattei